



## Notification Waiver Determination

### IKEA Australia – IP rights from Inter IKEA under new franchise agreement package

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| <b>Acquisition</b>           | <p>Inter IKEA Systems B.V. (<b>Inter IKEA</b>) applied for a notification waiver in respect of IKEA Pty Limited (<b>IKEA Australia</b>) proposed acquisition of intellectual property rights under new franchise agreements between IKEA Australia and Inter IKEA, as described in the transaction documents provided as part of the application (the <b>Acquisition</b>).</p> <p>Historically, the IKEA franchise model has been sales channel-based: Inter IKEA enters into a separate franchise agreement for each individual IKEA sales channel (for example, one agreement per IKEA store).</p> <p>Inter IKEA has developed a new, standardised franchise framework that, at its core, are two master agreements:</p> <ol style="list-style-type: none"><li>1. the Franchise Development Agreement (<b>FDA</b>), governing the development rights and obligations across a jurisdiction; and</li><li>2. the Franchise Operating Agreement (<b>FOA</b>), governing the rules for development and operation of an IKEA Retail Business in a jurisdiction.</li></ol> <p>Together, the FDA and FOA constitute the New Franchise Agreement Package (<b>NFAP</b>) and cover the development and operation of an IKEA Retail Business in a given jurisdiction under a single, consistent set of terms. Inter IKEA proposes to terminate the existing agreements and replace them with the Australian NFAP with IKEA Australia.</p> |
| <b>Determination</b>         | <p>The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>Date of determination</b> | <p>3 August 2026</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

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| <b>Parties to the Acquisition</b> | <p>The acquirer, IKEA Australia, is an Australian private company that operates the IKEA retail business in Australia. It forms part of Ingka Group, which is the largest IKEA franchisee globally. The holding company of Ingka Group is Ingka Holding B.V.. As a member of Ingka Group, IKEA Australia operates independently from Inter IKEA Group and conducts its activities under franchise agreements with Inter IKEA.</p> <p>The target, Inter IKEA, is the worldwide IKEA franchisor and the owner of the intellectual property rights in the IKEA Concept. Inter IKEA is part of Inter IKEA Group. The holding company of Inter IKEA Group is Inter IKEA Holding B.V..</p> |
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| <p><b>Explanation for determination</b></p> | <p>In making this notification waiver determination, the Australian Competition and Consumer Commission (the <b>ACCC</b>) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>).</p> <p>Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:</p> <ul style="list-style-type: none"> <li>a. the Acquisition involves a restructuring of an existing franchise relationship between Inter IKEA and IKEA Australia, and does not change the substance of the existing franchise relationship (including the rights to intellectual property)</li> <li>b. there is no horizontal consolidation or removal of a competitor as a result of the Acquisition.</li> </ul> <p>In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.</p> <p>Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.</p> <p>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.</p> <p>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's <a href="#">interim guidance on notification waivers</a> and <a href="#">merger assessment guidelines</a>.</p> |
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act**